

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

DAVE DELAPARA
Plaintiffs,

-against-

AMENDED
VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER RACHID
BENLHOUSSAIN, "JOHN DOE 1-10," identities
unknown but believed to be New York City
police officers who assisted in arrest and
assault of plaintiff along with Officer
Benlhousain;
Defendants.

Index No:
508404/2014

-----X

DAVE DELAPARA, by his attorneys, MARCHELOS LAW P.C., alleges
the following, upon information and belief, as his Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendant
Police Officers' unlawful and improper arrest and imprisonment of
plaintiff, physical assault, abuse, battery and harassment of
plaintiff, and use of intimidation and excessive force upon
plaintiff on June 18, 2013;

2. Plaintiff seeks declaratory relief pursuant to CPLR
§3001 and 28 U.S.C. §2201, compensatory and punitive damages for
violation of plaintiff's civil rights pursuant to 42 U.S.C.
§§1981, 1983, 1985 and 1986 and an award of costs, disbursements
and attorneys fees under 42 U.S.C. §1988. Plaintiff also seeks
compensatory and punitive damages under State Law Tort claims;

JURISDICTION

3. This action is predicated upon violations of

plaintiff's Civil Rights protected under the United States Constitution inclusive of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and actionable pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

VENUE

4. That Venue for this action is placed in the County of Kings because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3);

NOTICE OF CLAIM

5. That on September 5, 2013, plaintiff caused a Notice of Claim to be served upon defendants, THE CITY OF NEW YORK;

6. That on September 16, 2013, plaintiff caused an amended notice of claim to be served upon defendant, THE CITY OF NEW YORK;

7. The Notices of Claim were delivered to the person designated by law as a person to whom such claims may be presented and served;

8. The Notices of Claim was in writing, sworn to by or on behalf of the plaintiff and contained the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained;

9. That on January 15, 2014, plaintiff presented before

the defendant, CITY OF NEW YORK, and gave testimony pursuant to General Municipal Law 50-h about the acts and occurrence which gave rise to this action;

10. The defendant, CITY OF NEW YORK, never requested a physical exam;

11. Defendant, CITY OF NEW YORK has failed and refused to pay and/or adjust the claim within the statutory period of time;

12. This action has been started within one year and ninety days after the happening of the event upon which the claim is based;

PARTIES

13. Plaintiff, DAVE DELAPARA, was and continues to be a resident of the State of New York, County of Kings;

14. Defendant, the CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

15. Defendant, the CITY OF NEW YORK, has established and maintains a police department which is an agency of the defendant, CITY OF NEW YORK;

16. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, POLICE OFFICER RACHID BENLHOUSSAIN;

17. At all times relevant, defendant, POLICE OFFICER RACHID BENLHOUSSAIN was a duly appointed and acting police

officer of the CITY OF NEW YORK;

18. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendants identified herein only as "JOHN DOE 1-10", but believed to be New York City police officers who assisted in arrest and assault of plaintiff along with Officer Benlhousain;

19. At all times relevant, defendants, "JOHN DOE 1-10" were duly appointed and acting police officers of the CITY OF NEW YORK;

20. At all times relevant, the individual defendants were acting under the color of State Law;

21. At all times relevant, the individual defendants were acting both in their individual and official capacity as employees of defendant the CITY OF NEW YORK;

22. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of the CITY OF NEW YORK;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

23. That on or about June 18, 2013 at approximately 6:00 a.m. of that day, plaintiff, DAVE DELAPARA, was falsely and unlawfully arrested by defendant, CITY OF NEW YORK, by its agents, servants and/or employees while he was on the sidewalk in

front of his home located at 471 Macon Street Brooklyn, New York;

24. On June 18, 2013, prior to 6:00 a.m., plaintiff was sitting on the stoop of the home where he lives, with some individuals whom he had attended a party with earlier that morning;

25. Plaintiff had returned to his home from the party in Manhattan at approximately 5:00 a.m.;

26. That plaintiff's friend, Spencer Bowens, who had also attended the party with plaintiff, had parked his car in front of plaintiff's home at or near a fire hydrant;

27. That at and about 6:00 a.m., two police officers, including the named defendants, stopped in front of the home of the plaintiff;

28. That the police officers exited their vehicle and asked plaintiff and his companions to move the vehicle;

29. That neither plaintiff, nor plaintiff's companions could move the vehicle because they did not own the vehicle nor had keys to the vehicle;

30. That plaintiff's companions told the officers that nobody in their group owned the vehicle or could move the car;

31. That as the officers continued to press the issue with plaintiff and his companions, Spencer Bowens drove up in another vehicle, believed to be owned by his brother, parked that car and advised the officers that he was the owner of the

vehicle;

32. That plaintiff saw Spencer speak to the officers and then observed the officers issue him a ticket;

33. That Spencer, in an apparent moment of frustration, let the ticket drop to the street in front of the officers. As he attempted to retrieve the ticket, the officers grabbed Spencer, pushed him against the are and arrested him;

34. That shortly after the arrest, other police officers arrived at the scene;

35. At that point in time, plaintiff attempted to leave his stoop and walk to the corner store to get something to drink;

36. As he left his property and proceeded to the corner, he heard one of the police officers say, "arrest him too;"

37. That plaintiff did not know that the officers were talking about him, as he was not looking in their direction;

38. That plaintiff reached as far as his next door neighbors house, located at 473 Macon Street, Brooklyn, NY when the police officers grabbed plaintiff violently and pushed him into the fence along the property line of the above referenced premises (471 and 473 Macon Street);

39. That one of the officers applied a choke hold upon the plaintiff causing his legs and body to give out;

40. Plaintiff was then pushed violently to the ground where he was held down by two officers, one of whom had his knee

in claimant's back while the other held his arms;

41. While claimant was being handcuffed without any resistance on the part of claimant, a third police officer put his foot on side of plaintiff's face and violently smashed his head into the concrete sidewalk;

42. Claimant was thereafter lying face down on the sidewalk with his hands restrained behind his back before he was violently pulled to his feet by his handcuffed arms all while being verbally abused and told by the officers to "Get your ass up";

43. Plaintiff was then shoved into the closed door of a police car before he was placed into the police car and taken to the 81st police precinct believed to be located at 30 Ralph Avenue, Brooklyn, New York and then to Central Booking in Brooklyn;

44. That a complaint report was generated at the 81st police precinct by defendant, Benlhousain, wherein he charged plaintiff with assaulting a police officer, obstructing governmental administration and disorderly conduct;

45. That none of these charges were supported by the facts nor was there probable cause to believe that plaintiff committed any act that would support any of these charges;

46. That plaintiff was held at the 81st precinct until approximately 6:00 p.m. of that day and then he was transferred

to Central Booking in Brooklyn where he remained until approximately 1:30 a.m.;

47. Approximately 20 hours later, at and about 2:00 a.m., plaintiff was released from Central booking without being formally charged with any crime and without being presented before a Judge;

48. That no formal charges were ever proffered against plaintiff from this encounter with the police;

49. That the arrest was initiated and continued without probable cause to believe any crime had been committed by the plaintiff;

50. That the physical assault and battery was unjustified and excessive by the individual defendants as plaintiff did not commit any act which would provoke such a violent response from the defendants;

51. That plaintiff had knowledge of his confinement;

52. That plaintiff did not consent to the confinement;

53. That plaintiff was prevented from leaving the confinement;

54. That during this confinement, plaintiff was fingerprinted and photographed by, and at the direction of, the defendants;

55. That while incarcerated at the 81st police precinct and at Central Booking, plaintiff requested medical attention but

was refused;

56. That plaintiff specifically had complaints to his head, which was smashed into the concrete sidewalk by one of the defendant officers foot, and to his wrists, which were cut due to excessive use of force in applying handcuffs;

57. That plaintiff sustained great fear, physical harm, emotional harm in the form of fear, anxiety and stress, disgrace, embarrassment and loss of self esteem as a result of the aforesaid arrest, imprisonment, assault, battery, intimidation and abusive behavior perpetrated upon him by defendants as a result of the afore-referenced events including anxiety and stress and physical injuries which required medical treatment and caused him to incur, and/or be responsible for the cost for medical care;

58. Plaintiff suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced events;

**FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S SUBSTANTIVE AND PROCEDURAL RIGHT
TO BE FREE FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON FALSE ARREST AND
IMPRISONMENT**

59. Plaintiff repeats, reiterates and realleges each and

every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

60. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, the defendants, POLICE OFFICER RACHID BENLHOUSSAIN and the officers designated "JOHN DOE 1-10," individually deprived plaintiff of the *rights, privileges and immunities* secured by the Constitution and laws of the United States and the Fourteenth Amendment;

61. As a result of the aforescribed actions, these defendants individually deprived plaintiff, of the *right to be free from unreasonable search and seizures* secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

62. As a result of the aforescribed actions, these defendants individually deprived plaintiff of his *right to liberty* without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

63. As a result of the aforescribed actions, including the patently offensive physical conduct and threatening remarks made by defendants during the aforementioned seizure, arrest, incarceration and assault of plaintiff, these defendants individually deprived plaintiff of *Equal Protection under the Law*

secured by the Constitution and laws of the United States and the Fourteenth Amendment;

64. The aforescribed conduct by these defendants were racially motivated and instigated by defendants for other than lawful reasons and without probable cause;

65. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

66. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

67. As a result of the foregoing, plaintiff has suffered damages;

**SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S SUBSTANTIVE AND PROCEDURAL RIGHT
TO BE FREE FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON USE OF EXCESSIVE
FORCE**

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

69. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the defendants, POLICE OFFICER RACHID BENLHOSSAIN and the officers designated "JOHN DOE 1-10,"

individually deprived plaintiff of the *rights, privileges and immunities* secured by the Constitution and laws of the United States and the Fourteenth Amendment;

70. As a result of the aforescribed actions, these defendants individually deprived plaintiff of the *right to be free from unreasonable seizures* secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

71. As a result of the aforescribed actions, these defendants individually deprived plaintiff of his *right to liberty* without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

72. As a result of the aforescribed actions, including the patently offensive physical conduct and threatening remarks made by defendants during the aforementioned use of excessive force and intentional infliction of emotional harm upon plaintiff, these defendants individually deprived plaintiff of *Equal Protection under the Law* secured by the Constitution and laws of the United States and the Fourteenth Amendment;

73. The aforescribed conduct by these defendants was racially motivated and instigated by defendants for other than lawful reasons and without probable cause;

74. The amount and type of physical force used upon

plaintiff by these defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances;

75. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

76. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well being;

77. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace and deprivation of plaintiff's constitutional rights;

78. As a result of the foregoing, plaintiff has suffered damages;

**THIRD CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFFS' SUBSTANTIVE AND PROCEDURAL DUE
PROCESS RIGHTS UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON DEFENDANT'S
FAILURE TO ADOPT, IMPLEMENT, CREATE AND/OR
MAINTAIN ITS CUSTOM, POLICY AND PRACTICE
REGARDING THE USE OF PHYSICAL FORCE (MONELL)**

79. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

80. That the afore-described actions, including the manner in which defendant, CITY OF NEW YORK, created, adopted, implemented and maintained its policies regarding use of physical force (including the training and supervision of the individual defendant officers that used excessive force upon the plaintiff) violated the plaintiffs' civil rights;

81. That the afore-described actions, including the failure of defendant, CITY OF NEW YORK, to properly train and supervise its employees on its custom policy and practice with respect to use of physical force, including recognizing and respecting the constitutional boundaries of the use of such force, demonstrates a reckless disregard for the civil rights of lawful citizens, including the plaintiffs herein;

82. That the failure of defendant, CITY OF NEW YORK, to properly train and supervise its employees on its custom policy and practice with respect to use of physical force, including recognizing and respecting the constitutional boundaries of the use of such force, has been known to the supervisory policy making employees of defendant, CITY OF NEW YORK, for a substantial period of time;

83. That the reckless disregard for the deficient manner in which this defendant, CITY OF NEW YORK, permitted its custom, practice and policy of using physical force to be implemented and/or continued, has also been known to the supervisory policy

making employees of defendant, CITY OF NEW YORK, for a substantial period of time;

84. That the reckless disregard for the deficient and improper manner in which its officers have been trained to properly use physical force has also been known to the supervisory policy making employees of defendant, CITY OF NEW YORK, for a substantial period of time;

85. That the reckless disregard for the deficient manner in which its officers have been supervised in the proper use of physical force has also been known to the supervisory policy making employees of defendant, CITY OF NEW YORK, for a substantial period of time;

86. That despite its knowledge of repeated abuse of its lawful policies, customs and practices regarding the use of force, the supervisory and policy making employees of defendant, CITY OF NEW YORK, have not taken steps to terminate the known departure from same, have not disciplined or otherwise properly supervised or retrained the officers who engaged in said departures, have not condemned or otherwise discouraged said practices, have not effectively trained or retrained employees with regard to proper use of physical force or the manner in which it should be employed and the circumstances when it should be employed, and have instead sanctioned the manner in which its officers have implemented this policy and practice as previously

described through their deliberate indifference to the effect the departure of such policy and practices has on the constitutional rights of the general public, including residents and visitors of the CITY OF NEW YORK and the plaintiff herein;

87. That defendant, CITY OF NEW YORK, by and through its policy making agents, servants and/or employees, having sanctioned this departure from its lawful policy, custom and practice relating to the use of force, have caused a violation of the civil rights of plaintiffs and are vicariously liable to the plaintiffs for injuries resulting from violations of the Fourth, Fifth and Fourteenth Amendments of the United States Constitution actionable under and pursuant to 42 U.S.C. Sections 1981, 1983, 1985, 1986, 1988;

88. As a result of the acts stated above, plaintiffs have suffered a deprivation of liberty without probable cause, denial of due process, invasion of privacy, damage to character and reputation, mental stress and anxiety, and plaintiffs will continue to suffer same in the future;

89. As a result of the acts stated above, plaintiffs were compelled to and did incur expenses as a result, and were caused great social embarrassment in their community;

90. As a result of the foregoing, plaintiffs have suffered damages;

FOURTH CAUSE OF ACTION FOR ASSAULT

91. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

92. As a result of the foregoing, defendants, individually and/or vicariously, by and through their agents, servants and employees, placed plaintiff in apprehension of imminent harmful and offensive contact, thereby committing an assault upon him;

93. As a result of the foregoing, plaintiff has suffered damages;

FIFTH CAUSE OF ACTION FOR BATTERY

94. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

95. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, and intentionally battered and physically abused causing serious physical and emotional harm to plaintiff;

96. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally battered and physically abused plaintiff causing serious injury to plaintiff;

97. That the occurrence and injuries sustained by

plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their, agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto;

98. As a result of the foregoing, plaintiff has suffered damages;

SIXTH CAUSE OF ACTION FOR FALSE ARREST AND IMPRISONMENT

99. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

100. As a result of the foregoing, plaintiff was, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

101. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned plaintiff without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

102. That the occurrence, damages and injuries sustained

by plaintiff were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation on the part of the plaintiff contributing thereto;

103. As a result of the foregoing, plaintiff has suffered damages;

**SEVENTH CAUSE OF ACTION FOR NEGLIGENT AND
INTENTIONAL INFLICTION OF EMOTIONAL HARM**

104. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

105. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff;

106. As a result of the foregoing, plaintiff has suffered damages;

**EIGHTH CAUSE OF ACTION FOR NEGLIGENT
SUPERVISION AND RETENTION**

107. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

108. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers;

109. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers;

110. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of its police officers;

111. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities;

112. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner

in carrying out their official duties and/or responsibilities prior to the date of the incident complained of herein;

113. That at the time and place aforesaid, the defendant CITY OF NEW YORK, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally assaulted, battered, physically abused, attacked, threatened, intimidated, falsely arrested and imprisoned, plaintiff causing serious personal injury to plaintiff;

114. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendant, CITY OF NEW YORK, its agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department;

115. As a result of the foregoing, plaintiff has suffered damages;

NINTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

116. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

117. That the aforesaid occurrence and resulting injuries to plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the individual defendants, POLICE OFFICER RACHID BENLHOUSSAIN and the officers designated "JOHN DOE 1-10,";

118. That the aforesaid occurrence and resulting injuries to plaintiff were due to the conduct of these defendants which reflects an utter indifference to the safety and well being of others and specifically the safety and well being of plaintiff;

119. That the conduct of these individual defendants exhibited a reckless disregard for human life and the safety and well being of others and more particularly, for the life, safety and well being of plaintiff;

120. As a result of the foregoing, defendants, including defendant, POLICE OFFICER RACHID BENLHOUSSAIN and the officers designated "JOHN DOE 1-10," should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these defendants and others from acting in a similar way in the future;

121. As a result of the foregoing, plaintiff has suffered damages;

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's substantive and procedural right to be free from unreasonable searches and seizures under the Fourth Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the unlawful arrest and imprisonment of plaintiff;
2. As to the second cause of action, a declaration that plaintiff's substantive and procedural right to be free from unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the use of excessive force;
3. As to the third cause of action, a declaration that plaintiffs' substantive and procedural rights under the Fourth, Fifth and Fourteenth amendments to the United States Constitution predicated upon defendant's failure to adopt, implement, create and/or maintain its custom, policy and practice regarding the use of physical force was violated (Monell claim);

(B) As to the first through eighth causes of action, compensatory damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction;

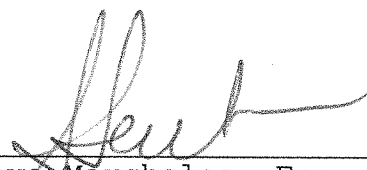
(C) As to the first through ninth causes of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton, willful and malicious character of the conduct complained of herein;

(D) As to the first through ninth causes of action, an award to plaintiff of the costs and disbursements herein;

(E) As to the first through third causes of action, an award of attorney's fees as provided under 42 U.S.C. §1988; and

(F) Such other and further relief as this Court may deem just, proper and equitable

Dated: February 12, 2015
Mineola, New York



Steve Marchelos, Esq.
MARCHELOS LAW P.C.
Attorneys for Plaintiff
DAVE DELAPARA
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

ATTORNEY VERIFICATION

Steve J Marchelos, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following to be true under the penalties of perjury pursuant to CPLR 2106.

That affirmant is the attorney for the plaintiff in the action within; that affirmant has read the foregoing **AMENDED COMPLAINT** and knows the contents thereof; that the contents are true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason this verification is not made by plaintiff and is made by affirmant is that plaintiff is not presently in the county where the attorneys for the plaintiff have their office.

Affirmant further says that the source of deponent's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from conversations with said plaintiff and investigations made by affirmant's office on behalf of said plaintiff.

Dated: Mineola, New York
February 12, 2015



Steve J Marchelos

AFFIDAVIT OF SERVICE

STATE OF NEW YORK)
) SS.:
COUNTY OF NASSAU)

SOTIRIA NEOFITOS, being duly sworn, deposes and says:

I am above the age of 18 years old, am not a party to this action and am employed in Mineola, New York.

That on February 12, 2015, I served the within **AMENDED VERIFIED COMPLAINT**, in the following manner:

By depositing a true copy thereof enclosed in a post-paid wrapper, in an official depository under the exclusive care and control of the United States Postal Service addressed to each of the persons listed below at the last known address set forth after each name;

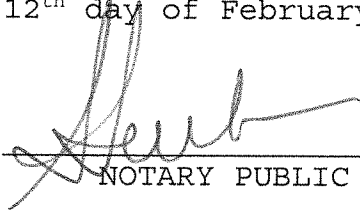
NAMES/ADDRESSES/FAXES OF PARTIES SERVED

TO: Zachary W. Carter
Corporation Counsel
New York City Law Department
Attorneys for Defendant(s)
100 Church Street
New York, NY 10007
Attn: Michael Shender, Esq.
(718) 222-2371
Your File No.: 2015-000710



Sotiria Neofitos

Sworn to before me this
12th day of February, 2015.



NOTARY PUBLIC

Steve Marchelos
Notary Public, State of New York
No. 02MA4990526
Qualified in Nassau County
Commission Expires January 6, 2018

DAVE DELAPARA
Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER RACHID BENLHOUSSAIN, "JOHN DOE 1-10," identities unknown but believed to be New York City police officers who assisted in arrest and assault of plaintiff along with Officer Benlhousain;
Defendants.

AMENDED VERIFIED COMPLAINT

MARCHELOS LAW P.C.
ATTORNEYS FOR PLAINTIFF(S)
87 MINEOLA BLVD. - 2ND FLOOR
MINEOLA, NEW YORK 11501
(516) 248-0202

Service of a copy of the within

is hereby admitted.

Dated:

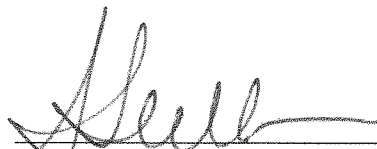
.....
Attorney(s) for

Attorney Certification Pursuant to 22 NYCRR Section 130-1.1.A

The undersigned, an attorney duly admitted to practice law in the Courts of the State of New York, respectfully affirms the truth of the following statement under the penalty of perjury pursuant to CPLR §2106

The undersigned attorney hereby certifies that to the best of his/her knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the paper(s) or the contents herein are not frivolous as defined in Subsection C of Section 130-1.1.

Dated: February 12, 2015



Steve Marchelos